

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.
EXCLUSION – PENDING AND PRIOR LITIGATION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to paragraph 2. Exclusions of **SECTION I – COVERAGE A. – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, and paragraph 2. Exclusions of **SECTION I – COVERAGE B. PERSONAL AND ADVERTISING INJURY LIABILITY**:

2. Exclusions

This coverage part does not apply to and we shall have no obligation or duty to defend the insured for:

Damage, loss, cost or expense arising out of any claim, "suit," action, demand, litigation, arbitration, alternative dispute resolution or other judicial or administrative proceeding which has commenced or is pending prior to the effective date of this coverage part, and also does not apply to any future damages, loss, cost or expense arising out of said pending or prior litigation;

This exclusion applies whether or not:

- (a) Damages continue or progress during the period of this coverage part; or
- (b) Ultimate liability has been established; or
- (c) The final amount of damages, loss, cost or expense has been established.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED